

# SAMPLE SOFTWARE SERVICES AGREEMENT

Fictional document for educational, software-testing and RAG-pipeline purposes only. It is not legal advice and is not intended for real-world execution.

This Software Services Agreement ("Agreement") is entered into on 1 September 2026 between **Northstar Analytics Pty Ltd**, a company incorporated in New South Wales, Australia, with its principal office in Sydney ("Client"), and **BluePeak Technologies Pty Ltd**, with its principal office in Melbourne, Victoria ("Service Provider"). The Client and Service Provider are each a "Party" and together the "Parties".

## 1. DEFINITIONS

1.1 "Confidential Information" means non-public business, technical, financial, customer, security or operational information disclosed by one Party to the other, whether in written, oral, electronic or visual form.

1.2 "Deliverables" means the software, reports, documentation, configurations and other work products described in Schedule A.

1.3 "Services" means the software development, integration, testing and support services described in Schedule A.

1.4 "Business Day" means a day other than a Saturday, Sunday or public holiday in New South Wales.

## 2. SCOPE OF SERVICES

2.1 The Service Provider will design, develop and configure a contract-analysis prototype for the Client. The prototype will include document upload, text extraction, clause retrieval, semantic search and an AI-assisted question-answering feature.

2.2 The Service Provider will perform the Services with reasonable skill, care and diligence and will provide status updates at least once every two weeks.

2.3 Any work outside the agreed scope requires a written change request approved by both Parties.

## 3. TERM

3.1 This Agreement begins on 1 September 2026 and continues for six months unless terminated earlier in accordance with Clause 10.

3.2 The Parties may extend the Agreement by written agreement signed before the expiry date.

## 4. FEES AND PAYMENT

4.1 The total project fee is AUD 24,000 exclusive of applicable taxes.

4.2 The Client will pay the Service Provider in three instalments: 30% on commencement, 40% after delivery of the working prototype, and 30% following final acceptance.

4.3 The Client must pay a valid invoice within 14 calendar days of the invoice date.

4.4 If an undisputed amount remains unpaid for more than 14 days after its due date, the Service Provider may suspend non-critical Services after giving the Client five Business Days' written notice.

## **5. CLIENT RESPONSIBILITIES**

5.1 The Client will provide timely access to sample documents, business requirements, authorised personnel and systems reasonably required for the Services.

5.2 The Client is responsible for ensuring that it has the legal right to provide any documents, data or materials supplied to the Service Provider.

5.3 Delays caused by the Client may result in reasonable changes to the project timeline.

## **6. CONFIDENTIALITY**

6.1 Each Party must keep the other Party's Confidential Information confidential and may use it only for the purposes of performing or receiving the Services.

6.2 A receiving Party may disclose Confidential Information only to personnel or professional advisers who need to know it and who are bound by confidentiality obligations.

6.3 The confidentiality obligations do not apply to information that is publicly available through no breach of this Agreement, was lawfully known before disclosure, or is independently developed without use of the disclosing Party's Confidential Information.

6.4 These confidentiality obligations continue for three years after termination or expiry.

## **7. INTELLECTUAL PROPERTY**

7.1 Each Party retains ownership of intellectual property it owned before this Agreement.

7.2 Upon full payment of all project fees, the Client will own the custom source code and project-specific Deliverables created exclusively for the Client under this Agreement.

7.3 The Service Provider retains ownership of its pre-existing tools, reusable libraries, templates, methods and know-how. To the extent such materials are embedded in a Deliverable, the Service Provider grants the Client a perpetual, non-exclusive, royalty-free licence to use them as part of that Deliverable.

## **8. DATA PROTECTION AND SECURITY**

8.1 Each Party must comply with applicable privacy and data protection laws relevant to the Services.

8.2 The Service Provider will implement reasonable technical and organisational security measures, including access controls, encryption in transit where supported, secure credential handling and regular backups.

8.3 The Service Provider must notify the Client without undue delay after becoming aware of a confirmed security incident that materially affects Client data.

8.4 The Service Provider must not use Client documents to train a public or third-party machine-learning model unless the Client has provided prior written consent.

## **9. ACCEPTANCE**

9.1 A Deliverable will be considered accepted if the Client confirms acceptance in writing or does not report a material defect within ten Business Days after delivery.

9.2 If the Client reports a material defect within the acceptance period, the Service Provider will use

reasonable efforts to correct the defect and resubmit the Deliverable for acceptance.

## **10. TERMINATION**

10.1 Either Party may terminate this Agreement for convenience by giving 30 calendar days' written notice to the other Party.

10.2 Either Party may terminate this Agreement immediately by written notice if the other Party commits a material breach and fails to remedy that breach within 14 calendar days after receiving written notice describing the breach.

10.3 Either Party may terminate immediately if the other Party becomes insolvent, enters liquidation, ceases business, or becomes subject to an equivalent insolvency event.

10.4 On termination, the Client must pay for Services properly performed up to the termination date. The Service Provider must return or securely delete Client Confidential Information on request, subject to legal or backup-retention requirements.

10.5 Clauses relating to confidentiality, intellectual property, liability, payment obligations already accrued and dispute resolution survive termination.

## **11. WARRANTIES**

11.1 The Service Provider warrants that the Services will be performed with reasonable professional skill and care.

11.2 Except to the extent required by law, no warranty is given that any AI-generated output will be error-free, complete or suitable as legal advice. The Client is responsible for appropriate human review before relying on material decisions.

## **12. LIMITATION OF LIABILITY**

12.1 To the maximum extent permitted by law, neither Party is liable to the other for indirect, incidental, special or consequential loss, including loss of profit, revenue or anticipated savings.

12.2 Subject to Clause 12.3, each Party's total aggregate liability arising out of or in connection with this Agreement will not exceed the total fees paid or payable under this Agreement.

12.3 The liability cap does not apply to fraud, wilful misconduct, breach of confidentiality obligations, infringement of intellectual property rights, or liability that cannot lawfully be excluded or limited.

## **13. INDEMNITY**

13.1 The Service Provider will indemnify the Client against third-party claims that a Deliverable created solely by the Service Provider infringes that third party's intellectual property rights, provided the Client promptly notifies the Service Provider and allows it reasonable control of the defence.

13.2 The indemnity does not apply to claims resulting from Client modifications, unauthorised use, or materials supplied by the Client.

## **14. FORCE MAJEURE**

14.1 Neither Party is liable for delay or failure to perform an obligation, other than payment obligations, to the extent caused by an event beyond its reasonable control, including natural disaster, widespread network outage, government action, war, civil disturbance or major utility failure.

14.2 The affected Party must notify the other Party as soon as reasonably practicable and take reasonable steps to reduce the impact of the event.

## **15. DISPUTE RESOLUTION**

15.1 Before starting court proceedings, the Parties must first attempt in good faith to resolve any dispute through discussion between their project managers.

15.2 If the dispute is not resolved within ten Business Days, it must be escalated to a senior executive of each Party.

15.3 If the dispute remains unresolved after a further ten Business Days, either Party may commence proceedings or agree to mediation.

## **16. GOVERNING LAW**

16.1 This Agreement is governed by the laws of New South Wales, Australia.

16.2 The Parties submit to the non-exclusive jurisdiction of the courts of New South Wales and the Commonwealth of Australia.

## **17. NOTICES**

17.1 A notice under this Agreement must be in writing and delivered by hand, registered post or email to the contact details most recently notified by the receiving Party.

17.2 An email notice is deemed received when the sender receives no automated delivery failure and the email was sent before 5:00 pm on a Business Day; otherwise it is deemed received on the next Business Day.

## **18. ASSIGNMENT AND SUBCONTRACTING**

18.1 Neither Party may assign this Agreement without the prior written consent of the other Party, such consent not to be unreasonably withheld.

18.2 The Service Provider may use subcontractors for specialist work but remains responsible for their performance and compliance with applicable obligations under this Agreement.

## **19. ENTIRE AGREEMENT**

19.1 This Agreement and its schedules constitute the entire agreement between the Parties concerning the Services and supersede prior discussions, proposals and communications relating to the same subject matter.

19.2 Any amendment must be in writing and signed by authorised representatives of both Parties.

## **20. SIGNATURES**

Signed for educational demonstration purposes only.

For Northstar Analytics Pty Ltd

Name: Jordan Lee

Title: Operations Director

Date: 1 September 2026

For BluePeak Technologies Pty Ltd

Name: Maya Singh

Title: Managing Director

Date: 1 September 2026

## **SCHEDULE A - PROJECT DELIVERABLES**

- A1. PDF and DOCX document upload capability.
- A2. Text extraction and cleaning pipeline.
- A3. Clause-aware text chunking.
- A4. Vector embeddings and semantic retrieval.
- A5. Retrieval-Augmented Generation question-answering prototype.
- A6. Basic risk-flagging rules for termination, payment, confidentiality and liability clauses.
- A7. Technical documentation and demonstration materials.